DAILY TRIAL REPORT - TRIBUNAL NO. 4 - FLICK CASE

EVIDENCE: The witness, Rittenberg, was cross-examined by Dr. Kranzbuehler, attorney for Burkart and by Dr. Dix, attorney for Flick. Prosecution then called to the stand Josef Hlabac a Czech who was forced to leave Czechoslovakia in 1943 and was assigned to work in the Groeditz Plant of Mittelstahl. Direct examination was concluded in the afternoon session and the witness was cross-examined by Kranzbuehler; Dix; Nath-Schreiber, assistant counsel for Kaletsch and by Dr. Siemers, Counsel for Weiss.

Law and Procedure: At the opening of the afternoon session the Presiding Judge called Prosecution and Defense Counsel to the bench and pointed out that the special interpreters being used for the witnesses had not been sworn. The witness, Rittenberg, had testified in French and the witness, Hlabac, had testified in Czech. Simultaneous translation was not possible and an interpreter was placed in the chair next to the witness. This interpreter would translate the question from either English or German into the language which the witness spoke and would give the answer of the witness into the microphone in English. The English was then translated simultaneously by the regular interpreters. By agreement of Counsel the interpreters were sworn at that time both for the testimony which they had already interpreted and the testimony they would interpret in the future. It was agreed that the special interpreters would be sworn in each instance immediately following the swearing of a witness.